



File No.: EXP202209822

RESOLUTION No.: R/00266/2023

Considering the complaint filed on August 4, 2022, with this Agency by Mr. A.A.A. against VODAFONE ESPAÑA, S.A.U. for not having properly attended to his right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the complainant) sent an email to VODAFONE ESPAÑA, S.A.U.

(LOWI) requesting "(...) that I be provided with a copy of the recording (from around March 20, 2022) of the conversation held with one of your agents (...)" and his request, as stated by the complainant, did not receive the legally established response.

The complainant provides documentation related to the exercise of the right.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has established a mechanism prior to the admission of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the entity being complained against for it to analyze and respond to the complainant and this Agency within one month, without any response having been received.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on November 4, 2022, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have been initiated by said admission agreement, will be six months.

The aforementioned agreement granted the entity being complained against the opportunity to be heard, so that within ten working days it could present any allegations it deemed appropriate.

This entity stated, in summary, that "(...) my client responded to each and every one of the complaints and requests made by the complainant. In particular, regarding the request for access to the recording of the telephone contract, on July 2, 2022, my client informed the complainant of the impossibility of providing the aforementioned recording of the telephone contract, as this contract was signed electronically.

(...) However, once this notification of the filing of a complaint sent by this Agency was received, my client proceeded to send a new communication to the complainant, in order to ensure a proper response to his request for the exercise of the right of access.

Thus, following the actions taken as a result of the notification made by this Agency to my client, Lowi has made available to the complainant the contract formally executed electronically with this entity and has also provided the recording of the telephone conversation held with Customer Service in March 2022, in the moments prior to the contracting. This is without prejudice to the fact that, as previously indicated, the contracting of services was carried out entirely by electronic means, through the sending and acceptance of the contract.

Attached is a copy of the response sent to the complainant.

FOURTH: After examining the allegations presented by the entity being complained against, they are forwarded to the complainant, so that, within fifteen working days, he may formulate any allegations he considers appropriate, responding that "(...), finally the company against which I exercised my right of access to the data has provided me with the recording that I repeatedly requested, dated February 22, 2023. Therefore, my request has been attended to (...)

In short, I have seen my request satisfied (...)"

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27,

2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have designated a data protection officer, Article 39 of the GDPR assigns to this officer the function of cooperating with that authority.

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In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, the same was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and proof of having provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their complaint accepted.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, as its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3).

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of the GDPR), and is obliged to respond to requests made no later than one month, unless it can

demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party falls on the data controller. The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive more than once during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them and being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others, meaning that the right of access will be granted in such a way that it does not affect third-party data.

FIFTH: Article 4.1) of the GDPR, Definitions, states:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

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a person whose identity can be determined, directly or indirectly, in particular by means of an identifier, such as a name, an identification number, location data, an online identifier, or one or several elements specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that person;"

SIXTH: Before addressing the substance of the issues raised, it should be noted that this procedure is initiated as a consequence of the denial of any of the rights regulated by data protection regulations (access, rectification, deletion, limitation, portability, and opposition) and aims to adopt the corresponding measures to ensure that the guarantees and rights of the affected party are duly restored. Therefore, in this case, only those issues raised by the claiming party that fall within the scope of the aforementioned

data protection complaint procedure will be analyzed and evaluated.

Regarding whether the requested access is appropriate or not, it should be noted that, in accordance with the provisions of paragraphs 1 and 2 of Article 4 of the GDPR previously transcribed, voice is considered personal data. Therefore, in principle, the claiming party would have the right to be provided with those recordings, under the data protection regulations.

In this regard, it must be considered that voice is a peculiar and individual characteristic of each person that makes them identifiable; therefore, it is a piece of personal data. Consequently, the right of access to the recording of their voice requested by the claiming party is indeed protected by the current data protection regulations, providing a copy of the requested recording to the claiming party or, failing that, a transcription of its content.

That said, in the case analyzed here, the claiming party exercised their right of access to the voice recording due to the conclusion of a contract and that, after the period established in accordance with the aforementioned regulations, their request did not receive the legally required response.

During the processing of this procedure, the entity has stated that it had informed the claiming party of the impossibility of providing the aforementioned recording of the telephone contract, as the contract was signed electronically. However, upon becoming aware of the notification of the complaint submitted by this Agency, it proceeded to send a new communication to ensure a proper response to their request to exercise the right of access, making available the contract formally concluded electronically with this entity and, likewise, has provided the recording of the telephone conversation held with Customer Service in March 2022, in the moments prior to the contracting. "This is without prejudice to the fact that, as previously indicated, the contracting of services was carried out entirely by electronic means, through the sending and acceptance of the contract.", with the claiming party indicating that their request has been satisfied.

This Agency only has jurisdiction over personal data, and cannot assess information concerning possible contracts signed or incidents regarding

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the same, nor resolve civil issues, such as those related to the civil or commercial validity of the contract, the proper provision of the contracted services, or the interpretation of contractual clauses, regardless of whether other regulations support the obtaining of such information.

The determination of the conditions of the contractual or commercial provision, based on an interpretation of the contract signed between the parties and its correct application, must be brought before the competent administrative or judicial bodies, as it exceeds the competence of the Agency. Therefore, it is appropriate to formally uphold the present claim as the right has been addressed out of time without requiring additional actions by the data controller.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by Mr. A.A.A. against VODAFONE ESPAÑA, S.A.U. However, it is not appropriate to issue a new certification by said entity, as the right has been addressed out of time, without requiring additional actions by the data controller.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to VODAFONE ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for

Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.
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Mar España Martí

Director of the Spanish Agency for Data Protection

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